

The Customs (Fees for Rendering Services by Customs Officers) Regulations, 1998

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Union of India - Act

The Customs (Fees for Rendering Services by Customs Officers) Regulations, 1998

UNION OF INDIA

India

The Customs (Fees for Rendering Services by Customs Officers) Regulations, 1998

Rule THE-CUSTOMS-FEES-FOR-RENDERING-SERVICES-BY-CUSTOMS-OFFICERS-REGULATIONS-1998 of 1998

Published on 4 September 1998

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The Customs (Fees for Rendering Services by Customs Officers) Regulations, 1998

Published vide Notification Gazette of India, Extraordinary Part 2, Section 3(i), dated 4th September, 1998 (w.e.f. 15th October, 1998)

G.S.R. 558 (E), dated 4th September, 1998. - In exercise of the powers conferred by Section 157 and Section 158 of the Customs Act, 192 (52 of 1962) and in supersession of the Customs (Fees for Rendering Services by Customs Officers) Regulations, 1968, except as respects things done or omitted to be done before such supersession, the Central Board of Excise and Customs hereby makes the following Regulations, namely:

1.

Short title and commencement.

(1)

These regulations may be called the Customs (Fees for Rendering Services by Customs Officers) Regulations, 1998.

(2)

They shall come into force on the 15th October, 1998.

2.

Definitions.

- In these Regulations, unless the context otherwise requires -

(a)

"Customs Officer" includes such officers as are appointed under Section 4 of the Customs Act, 1962 (52 of 1962

);

(b)

"Customs work" means functions to be performed by Customs Officer under the Customs Act, 1962 (52 of 1962

) or any other law for the time being in force;

(c)

"rendering services by Customs officer" means -

(i)

performance of Customs work by the Customs Officer beyond the working hours but within the Customs area; and

(A)

examination of the goods and related functions;

(B)

loading and unloading of the goods whether generally or specifically;

(C)

escorting goods from one Customs area to the other; and

(D)

any other customs work authorised by the Commissioner of Customs;

(ii)

performance of Customs work by the Customs Officer beyond the Customs area at any time, and includes -

(d)

"Working hours" means the duty hours prescribed by the Commissioner of Customs in his jurisdiction for normal Customs work and where different working hours have been prescribed by the said Commissioner for different items of Customs work or for different places within his jurisdiction, such working hours.

3.

Levy of fees for rendering of services.

(1)

On a request made in that behalf by any person, a fee as given in the Table below shall be levied for rendering of services by the Customs Officer.

Table

Catetory of Officer

Fee per hour or part thereof

Fee per hour or part thereof

6 A.M. to 8 P.M

8 P.M. to 6 A.M.

6 A.M. to 8 P.M

8 P.M. to 6 A.M.

1

2

3

4

5

Rs.

Rs

Rs.

Rs.

1. Appraisers, superintendent Customs
preventive and Superintendent Central Excise

85

125

140

180

2. Air customs Officer, Examiners,
Preventive Officers and Inspectors of Central Excise

75

100

105

145

3. Class IV Staff

35

45

55

60

(2)

The fees levied under sub-regulation (1) shall be payable by the person requesting for rendering of services or on whose account such services has been requested.

(3)

The fees levied under sub-regulation (1) shall be subject to the following conditions, namely :

(a)

The levy of fees as aforesaid shall be for a minimum of 3 hours in each case, except in cases of overtime postings immediately preceding or immediately following the working hours of the concerned cadre of officers.

(b)

The period between midnight and 6 A.M. shall be treated as a block whether the services are required for the entire block or for a portion thereof.

(c)

In relation to jobs to be performed by any Customs Officer during the working hours, there shall be two blocks-one before lunch and the other after lunch respectively and fees shall be charged for the entire block whether the request for the services of such officer relates to the entire block or portion thereof.

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